

Code, § 3294.) Therefore, the court intends to grant summary adjudication of the prayer for punitive damages in the cross-complaint.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK **on** 09/15/26.
(Judge's initials) (Date)

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Tentative Ruling

Re: ***Erlinda Nadora v. Valley Dental & Orthodontics***
Superior Court Case No. 25CECG04546

Hearing Date: September 16, 2026 (Dept. 501)

Motion: By Plaintiff for Leave to File a First Amended Complaint

Tentative Ruling:

To grant plaintiff Erlinda Nadora's motion for leave to file a first amended complaint. (Code Civ. Proc., § 473.) Plaintiff shall file their first amended complaint within 10 days of the date of service of this order.

Explanation:

“The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading” (Code Civ. Proc. § 473, subd. (a)(1).) “While a motion to permit an amendment to a pleading to be filed is one addressed to the discretion of the court, the exercise of this discretion must be sound and reasonable and not arbitrary or capricious. And it is a rare case in which ‘a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.’ If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (*Morgan v. Superior Court of Cal. In and For Los Angeles County* (1959) 172 Cal.App.2d 527, 530, internal citations omitted.)

Plaintiff Erlinda Nadora moves the court for an order granting her leave to file a First Amended Complaint. The proposed First Amended Complaint amends the first cause of action and adds a second cause of action to include additional allegations against Jasbir Cheema Dental Corporation and Jasbir S. Cheema, DDS. The amendments are intended to ensure the pleading includes all claims plaintiff seeks to litigate against the parties. The amendments do not appear to prejudice defendants. Defendants have not opposed the motion. Accordingly, the court grants plaintiff's motion for leave to file the First Amended Complaint.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 09/15/26
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